

	30-2025-01516849-CU-CR-CJC	
6	Doe vs. Orange County 30-2025-01530494-CU-PO-CJC	Demurrer to Complaint Defendant, County of Orange’s demurrer to complaint is SUSTAINED with 10 days leave to amend. According to defendant’s counsel, during the statutorily-required meet and confer process, plaintiff’s counsel agreed to file a first amended complaint. Although not raised directly by defendant, the court finds the complaint uncertain and lacking in necessary detail. Plaintiff is ORDERED to file a red-lined and clean version of the first amended complaint. Clerk to give notice.
7	Nieto vs. Aaron Thomas Company 30-2025-01466779-CU-WT-CJC	Demurrer to Complaint Off calendar – First Amended Complaint filed.
8	Garcia vs. Providence St. Jude Medical Center 30-2025-01517910-CU-MM-CJC	Demurrer to First Amended Complaint Defendant Providence St. Jude Medical Center dba St. Jude Hospital’s demurrer to first amended complaint is SUSTAINED without leave to amend in part and SUSTAINED with 10 days leave to amend in part. <u>Third cause of action for negligent infliction of emotional distress – SUSTAINED without leave to amend</u> The third cause of action for negligent infliction of emotional distress is not an independent tort. Since it is based on the same allegations as the first and second causes of action for professional negligence, the third cause of action for negligent infliction of emotional distress is impermissibly duplicative. (See <i>Award Metals, Inc. v. Superior Court</i> (1991) 228 Cal.App.3d 1128, 1135; <i>Selleck v. Globe Int’l</i> (1985) 166 Cal.App.3d 1123, 1136.) <u>Fourth cause of action for fraudulent concealment – SUSTAINED with 10 days leave to amend</u> Plaintiffs’ fraud claim fails because Plaintiffs have not alleged specific facts indicating intentional concealment, knowledge of falsity, an intent to deceive by Defendant, reliance and causation. Plaintiffs provide no specific facts

		as to who concealed any facts or made any alleged representation, or what was specifically said. Plaintiffs' opposition is unsupported by any factual allegations or supporting legal authority. The "court may treat [unsupported legal arguments] as waived, and pass it without consideration." (<i>Mansell v. Board of Administration</i> (1994) 30 Cal.App.4th 539, 545.) Motion to Strike Portions of First Amended Complaint Defendant Providence St. Jude Medical Center dba St. Jude Hospital's Motion to Strike is GRANTED with 10 days leave to amend. Defendant moves to strike "For restitution according to proof" from page 8, prayer item no. 3 and "For . . . reasonable attorneys' fees according to proof" from page 8, prayer item no. 5 of the First Amended Complaint. Plaintiffs' opposition is unsupported by any factual allegations or supporting legal authority. The "court may treat [unsupported legal arguments] as waived, and pass it without consideration." (<i>Mansell v. Board of Administration</i> (1994) 30 Cal.App.4th 539, 545.) Restitution is an equitable remedy generally available in cases involving unjust enrichment, disgorgement, or the restoration of specific funds or property wrongfully obtained by a defendant. (See <i>Korea Supply Co. v. Lockheed Martin Corp.</i> (2003) 29 Cal.4th 1134, 1144-1149 [restitution is limited to the return of money or property wrongfully obtained from the plaintiff]; <i>Munoz v. MacMillan</i> (2011) 195 Cal.App.4th 648, 661 [restitution requires that the defendant possess money or property belonging to the plaintiff].) Restitution is not a recognized measure of damages in a medical negligence action such as this. Plaintiffs have not alleged facts demonstrating defendant wrongfully acquired or retained money or property belonging to plaintiffs, nor have they alleged any basis for equitable restitution. Attorney fees are recoverable only when authorized by contract, statute or law. (Code Civ. Proc., §§ 1033.5, subd. (a)(10), 1021.) The FAC does not state a contractual, statutory, or other legal basis for an award of attorney fees.
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9	Richardson Investments LLC vs. Abi-Abdallah 30-2025-01512582-CU-FR-CJC	Demurrer to Complaint and Motion to Strike Complaint Off calendar – defendants dismissed.
10	Dobson vs. Rao 30-2024-01436220-CU-FR-CJC	Motion for Summary Judgment and/or Adjudication Off calendar at request of moving party.
11	RDG Construction Services, Inc. vs. Gold's Drywall, Inc. 30-2023-01360563-CU-BC-CJC	Demurrer to First Amended Cross-Complaint Cross-Defendant/Plaintiff RDG Construction Services, Inc.'s Motion for Summary Adjudication as to the 4th Cause of Action of Cross-Complainant/Defendant Gold's Drywall, Inc.'s (Gold) Cross-Complaint is DENIED. RDG argues the 4th cause of action for recovery of the mechanic's lien release bond must be venued where the property subject to the mechanic's lien is located pursuant to Code of Civil Procedure, section 392. RDG presents no on-point decisional law requiring the result it seeks. This is not an action for mechanic's lien; it is an action for recovery of a release bond. "An owner of real property or an owner of any interest in real property subject to a recorded claim of lien, or a direct contractor or subcontractor affected by the claim of lien, that disputes the correctness or validity of the claim may obtain release of the real property from the claim of lien by recording a lien release bond. The principal on the bond may be the owner of the property, the direct contractor, or the subcontractor." (Civ. Code, § 8424, subd. (a).) A bond is subject to venue under Code of Civil Procedure, section 996.430, subdivisions (b), which provides, "If the bond was given in an action or proceeding, the action shall be commenced in the court in which the action or proceeding was pending. If the bond was given other than in an action or proceeding, the action shall be commenced in any court of competent jurisdiction, and the amount of damage claimed in the action, not the